

Court No. - 2

Case :- WRIT - C No. - 51581 of 2009

Petitioner :- Wecan Services.Com Limited

Respondent :- State Of U.P. & Others

Petitioner Counsel :- S. Shekhar,V.K. Singh

Respondent Counsel :- C.S.C.,Pankaj Kr. Shukla

Hon'ble R.K. Agrawal,J.

Hon'ble Mrs. Jayashree Tiwari,J.

Sri Pankaj Kumar Shukla, learned counsel appearing for the respondents may obtain instructions by 12th October, 2009. Put up as a fresh case on 13th October, 2009.

Order Date :- 7.10.2009

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Court No. - 2

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Petitioner :- Wecan Services.Com Limited

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Petitioner Counsel :- S. Shekhar,V.K. Singh

Respondent Counsel :- C.S.C.,Pankaj Kr. Shukla

Hon'ble R.K. Agrawal,J.

Hon'ble Mrs. Jayashree Tiwari,J.

Sri Sudeep Ojha learned counsel appearing for Power Corporation has stated that instruction has not come so far.

As prayed, put up as fresh case on 21.10.2009. In the meantime he may obtain instruction.

Order Date :- 14.10.2009

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Court No. - 2

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Petitioner :- Wecan Services.Com Limited

Respondent :- State Of U.P. & Others

Petitioner Counsel :- S. Shekhar,V.K. Singh

Respondent Counsel :- C.S.C.,Pankaj Kr. Shukla

Hon'ble R.K. Agrawal,J.

Hon'ble Mrs. Jayashree Tiwari,J.

On the request of Sri Pankaj Kumar Shukla, put up as a fresh case on 23rd October, 2009.

Order Date :- 21.10.2009

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Petitioner :- Wecan Services.Com Limited

Respondent :- State Of U.P. & Others

Petitioner Counsel :- S. Shekhar,V.K. Singh

Respondent Counsel :- C.S.C.,Pankaj Kr. Shukla

Hon'ble R.K. Agrawal,J.

Hon'ble Mrs. Jayashree Tiwari,J.

Sri Pankaj Kumar Shukla, learned Standing Counsel has obtained instruction, he may bring it as record by filing counter affidavit within three days.

Rejoinder Affidavit may be filed within two days thereafter.

Put up as fresh case on 29.10.2009.

Order Date :- 23.10.2009

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Court No. - 2

Case :- WRIT - C No. - 51581 of 2009

Petitioner :- Wecan Services.Com Limited

Respondent :- State Of U.P. & Others

Petitioner Counsel :- S. Shekhar,V.K. Singh

Respondent Counsel :- C.S.C.,Pankaj Kr. Shukla

Hon'ble R.K. Agrawal,J.

Hon'ble Mrs. Jayashree Tiwari,J.

M/s. Manish Papers & Board Mills Limited had its Unit at Plot No.20/8, Site -IV, Industrial Area, Sahibabad, Ghaziabad. The Unit was taken over by the petitioner and the name was also changed. The petitioner made an application on 12th May, 2009 for sanctioning of an electricity connection of 35 HP. The petitioner expressed its willingness to pay charges required for giving the said electricity connection. However, the electricity connection is not being given on the ground that there stands outstanding dues of Rs.Eleven lacs and odd against M/s. Manish Papers & Board Mills Limited which had filed a civil suit in the Court at Ghaziabad and had obtained a stay order against the realisation of the demand on furnishing a surety bond of Rs.11 lacs. The bond has been furnished by the said Company. The matter is still pending in the Civil Court. By means of the present writ petition the petitioner seeks a writ, order of direction in the nature of mandamus directing the respondent no.3 to provide permanent 35HP electricity connection to the petitioner.

We have heard Sri V.K. Singh, learned Senior Counsel assisted by Sri S.Shekhar, on behalf of the petitioner, Sri Pankaj Kumar Shukla appearing for the respondent nos. 2 and 3 and the learned Standing Counsel, who represents respondent no.1.

Sri Pankaj Kumar Shukla, learned counsel for the respondent nos. 2 and 3, stated that in view of the provisions of Regulation 4.49 of the Electricity Supply Code, 2005 if an application for enhancement of load is made by a consumer it is required to furnish a bank guarantee to the satisfaction of the licensee even in case where recovery of any dues has been stayed by any court, Tribunal or any forum or by an authority.

Faced with situation Sri V.K. Singh submitted that as the petitioner has been awarded contract from Indian Oil Corporation Ltd. for manufacturing pouches and corrugated boxes the petitioner is in urgent need of the electricity and the petitioner is prepared to furnish bank guarantee within six weeks from today. However, this Court in order to safeguard the interest of the petitioner, as a bond has already been furnished by the erstwhile Company, M/s. Manish Papers & Board Mills Limited the electricity supply to be given within three days.

The proposal given by Sri V.K. Singh appears to be just and reasonable. We, therefore, dispose of the writ petition with the direction to the respondent no.3 to release the electricity connection of 35HP to the petitioner by 3rd November, 2009. The petitioner shall furnish bank guarantee of Rs.12,00,000/- within six weeks from today. Apart from this, the petitioner

shall also be liable to pay the current electricity charges as and when it becomes payable.

Date :- 30.10.2009

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